

The M.P. Slaughter of Animals Act, 1915

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State of Madhya Pradesh - Act

The M.P. Slaughter of Animals Act, 1915

MADHYA PRADESH

India

The M.P. Slaughter of Animals Act, 1915

Act 4 of 1915

Published on 1 January 1915

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The M.P. Slaughter of Animals Act, 1915

(M.P. Act

No. 4 of 1915

)

An Act to make better provision for the regulation of the slaughter of animals in the [Madhya Pradesh]

[Substituted by M.P.A.O. 1950.]

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Where it is expedient to make better provisions for the regulation of the slaughter of animals.

It is hereby enacted as follows :-

1.

Short title, extent and commencement.

(1)

This Act may be called the Madhya Pradesh Slaughter of Animals Act, 1915.

(2)

This section extends to the whole of the Mahakoshal region; and the State Government may, by notification, extend, on and from a date to be specified in the notification, the whole or any part of the rest of this Act, to any such local area as it thinks fit.

2.

Definitions.

- In this Act-

(a)

"animal" means any bull, bullock, cow, buffalo, goat, sheep or their young;

(b)

"slaughter-house" means any place where more than ten animals are slaughtered on any one day, and includes any premises for the manufacture of jerked meat or the preparation of hides, bones or any other products of animals slaughtered at the slaughter-house, but shall not include any place where animals are slaughtered for religious purposes only and not for profit, nor any private place where more than ten animals are slaughtered on any one day for a social ceremony;

(c)

"occupier" includes any person owning any animals slaughtered at the slaughter-house or carrying on the business of manufacturing or preparing the products of slaughtered animals for sale, or managing agent or other person authorised to represent the occupier.

3.

Inspectors.

(1)

The State Government may, by notification, appoint by name or by office such persons as it thinks fit to be Inspectors of Slaughter-houses within such local limits as it may assign to such Inspectors.

(2)

The District Magistrate shall be an Inspector of all slaughter-houses in his district.

(3)

Every Inspector shall be deemed to be a public servant within the meaning of the Indian Penal Code (XLV of 1860) and shall be officially subordinate to such authority as the State Government may indicate in this behalf.

4.

Powers of Inspectors.

- Subject to any rules in this behalf, an Inspector of Slaughter-houses may within the local limits for which he is appointed-

(a)

enter, with such assistants, if any, as he thinks fit, any place which is, or which he has reason to believe to be used as a slaughter-house;

(b)

make such examination of the premises and of the registers prescribed by rules made under this Act and take on the spot or otherwise such evidence of any person as he may deem necessary for carrying out the purpose of this Act;

(c)

exercise such other powers as may be necessary for carrying out the purposes of this Act:

Provided that no one shall be required under this section to answer any question or give any evidence tending to criminate himself.

5.

Penalties.

- Any person who in breach of this Act or any rule made thereunder-

(a)

slaughters any animal, or allows any animal to be slaughtered, in an inhuman way;

(b)

fails to provide any animal with food or water or cruelly treats any animal;

- (c) neglects to keep any slaughter-house in a sanitary condition;
- (d) neglects to take out a licence or to keep any register prescribed by rules made under this Act;

(e) fails to destroy or otherwise dispose of the flesh, hides or bones of any animal in such manner that they may not be injurious to health;

(f) does not omit to do any other act prohibited or prescribed by this Act or any rule made thereunder, shall be punished with fine which may extend to two hundred rupees :

Provided that no prosecution under this section shall be instituted except by, or with the sanction of, the Inspector.

6.

Exemption of occupier from liability in certain cases.

(1)

Where the occupier of a slaughter-house is charged with an offence under this Act, he shall be entitled, upon complaint made by him, to have any other person whom he charges as the actual offender brought before the Court at the time appointed for hearing the charge; and if, after the commission of the offence has been proved, the occupier of the slaughter-house proves to the satisfaction of the Court-

(a)

that he has used diligence to enforce the execution of this Act; and

(b)

that the said other person committed the offence in question without his knowledge, consent or connivance, that other person shall be convicted of the offence and shall be liable to the like fine as if he were the occupier, and the occupier shall be discharged from any liability under this Act.

(2)

When it is made to appear to the satisfaction of the Inspector at any time prior to the institution of the proceedings-

(a)

that the occupier of the slaughter-house has used all due diligence to enforce the execution of this Act; and

(b)

by what person the offence has been committed; and

(c)

that it has been committed without the knowledge, consent or connivance of the occupier and in contravention of his orders, the Inspector shall proceed against the person whom he believes to be the actual offender without first proceeding against the occupier of the slaughter-house, and such person shall be liable to the like fine as if he were the occupier.

7.

Penalties for certain offences.

- Any person who wilfully obstructs an Inspector in the exercise of any power under Section 4 or fails to produce on demand by an Inspector any licence or register prescribed by rules made under this Act shall be punishable with fine which may extend to hundred rupees.

8.

Power of State Government to transfer its functions to Municipal Committees.

- The State Government may, by notification, transfer all or any of the functions of the State Government under this Act to any Municipal Committee within the local area subject to the jurisdiction of such Municipal Committee :

Provided that all rules framed by a Municipal Committee under Section 10 of this Act shall be made in the manner in which under the law for the time being in force, the Municipal Committee makes bye-laws for the regulation of other matters within the limits of the municipality, and shall, when sanctioned by the State Government and published in the Official Gazette, have the force of law.

9.

Power of State Government to withdraw from Municipal Committees their functions regarding slaughter-houses.

- The State Government may, by notification, withdraw from any Municipal Committee its functions or powers under the Central Provinces Municipal Act, 1903 (XVI of 1903), in respect of any slaughter-house situated within or without the municipal area, and thereupon the control, management and inspection of such slaughter-house shall be regulated by provisions of this Act.

10.

Power to make rules.

(1)

The State Government may make rules consistent with this Act to provide for-

(a)

the slaughter of animals in a humane manner and the proper treatment of animals before slaughter;

(b)

the class and maximum daily number of animals to be slaughtered;

(c)

the maintenance of slaughter-house in a sanitary condition;

(d)

the licensing of slaughter-houses and occupiers and the levy of fees for licences, whether by a charge for each animal slaughtered or by a fee for the licence;

(e)

the maintenance of registers of persons employed in, and animals slaughtered at, slaughter-houses;

(f)

the destruction of the flesh, hides or bones of any animal suffering from anthrax, tuberculosis or any disease which may be declared likely to be injurious to health;

(g)

generally, the carrying out the purposes of this Act :

Provided that rules made under clause (a) for the slaughter of animals in a humane manner shall not conflict with the recognized religious usages of the person employed in their slaughter.

(2)

The power conferred by sub-section (1) to make rules is subject to the condition of the rules being made after previous publication.

(3)

Such rules shall be published in the Official Gazette and shall thereupon have the force of law.

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